

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 2, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

Line 7	25CV470875	Deharo Mechanical, Inc. v. San Jose Biocube IV, LLC et al.	Plaintiff Deharo Mechanical, Inc.’s motion to consolidate this action with case No. 25CV471036. Notice is proper and the motion is opposed by defendant Valley Tech Centre Owner, LLC. “When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” (Code Civ. Proc., § 1048; <i>Villa Zinfandel, LLC v. Bearman</i> (2025) 116 Cal.App.5th 848, 862.) Plaintiff’s reply acknowledges that there are “no fewer than five cases involving the Subject Premises” pending in this court. (Reply, at p.3:23-28.) But plaintiff provides no explanation for why the current motion seeks to consolidate only two of those cases. Nor does plaintiff explain why a piecemeal consolidation of these two cases serves judicial economy when consolidation of additional cases may later be appropriate. Consolidation is premature at this time. The motion is DENIED WITHOUT PREJUDICE. The parties are ordered to meet and confer in advance of the case management conference scheduled for October 27, 2026, to discuss the possibility of consolidating these (and perhaps other) cases that all involve the same subject premises. The court will prepare the order.
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